

TERMINATION FORM

**STEP 1 Participant Information (Please Print and Complete This Section in Full)**

Phone # 585-329-8349 Social Security # 119-48-9671
 Employee Name (Last) LIVINGSTON (First) KENNETH (Middle Initial)
 Address (Street) 119 THUNDER RIDGE DR. (Apt. # / PO Box#) PO Box 92
 (City) RUSH (State) NY (Zip Code) 14543

Participant must be provided with the Special Tax Notice Regarding Plan Payments.

STEP 2 Reason for Distribution (Please check one box only and enter date.)

- ☐ Employment Termination or Resignation Termination Date: _____ MM/DD/YYYY
☒ Retirement
☐ Disability (see Roth Disability in Step 4 below if you have a Roth account under the Plan)
☐ Plan Termination by Employer

STEP 3 Funds Disbursement Election (Select A, B or C; if a Rollover is selected, also complete Step 4)A. ☒ Total Distribution (select one of the following)

- ☐ Pay me 100% of my account balance in a cash distribution
☒ Rollover 100% of my account balance (Complete Step 4)
☐ Rollover \$ _____ (and check one)
 from my non-Roth source(s) _____ from Roth source(s) _____ and pay the remainder to me in a cash distribution
 (Complete Step 4) (taxable amounts will be rolled over before any non-taxable amounts)

- ☐ Rollover all of my pre-tax amounts (Roth and non-Roth) pay me any nontaxable amounts in a cash distribution (Complete Step 4)

OR

B. ☐ Partial Distribution Distribute a portion of my vested account balance and leave the remaining balance in the Plan.

(A Partial Distribution is not available if the Plan Sponsor is terminating the Plan.) Specify the dollar amount to be distributed which is less than 100% of your account balance in the Plan, a payment option, and select a money type/source (if desired):

Partial Distribution Amount: \$ _____

Payment Option: (select one)

- ☐ Pay me 100% of the Partial Distribution Amount in a cash distribution (select money type below if desired)
☐ Rollover 100% of the Partial Distribution Amount (Complete Step 4) (select money type below if desired)
☐ Rollover \$ _____ (and check one)

from my non-Roth source(s) _____ from Roth source(s) _____ and pay the remainder to me in a cash distribution, up to the Partial Distribution Amount (Complete Step 4) (taxable amounts will be rolled over before any non-taxable amounts) (do not select money type below)

Money Type Election: Your Partial Distribution (both Rollover and cash) will be withdrawn proportionally from all of your money types unless you limit the Partial Distribution to the following money type(s) by checking one or more boxes below:

- ☐ Roth 401(k) (Roth elective deferrals and earnings)
☐ Roth Rollover (Roth Rollover including earnings and In-Plan Roth Rollovers including earnings)
☐ Pre-tax Rollover (Pre-tax Rollover money and earnings)
☐ After-tax (non-Roth after-tax money and earnings)

Note: If the type of money selected is not sufficient to cover the distribution amount, then the amount processed will be reduced to the maximum amount available for that money type(s).

OR

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- C. ☐ **Installments** Distribute my vested account balance to me in the form of periodic payments. Only available if your vested account balance excluding any rollover account exceeds \$5,000. Not available if the Plan Sponsor is terminating the Plan. Please contact your Plan Administrator if you would like your installments direct deposited. The number of payments may not exceed your life expectancy, or the joint life expectancy of you and your beneficiary. Fill in your elections below:

Installment Payment Start Date (MM/DD/YYYY): _____

Number of payments: _____ OR Payment Amount _____

Frequency of Payments (Select One): ☐ Monthly ☐ Quarterly ☐ Semi-annually ☐ Annually

I understand that mandatory 20% Federal Income Withholding tax will apply (and any mandatory state tax withholding may apply) to the taxable portion of my distribution, including any installments payable for a period of less than 10 years. If I elect installment payments for 10 or more years, federal withholding may apply, unless I elect to have no withholding apply.

Note: Regardless of your election, you will remain liable for any federal income tax on the distribution amount. You may also be subject to penalties under the federal estimated tax payment rules if your tax payments and withholding amounts are not sufficient.

☐ Check here if installment payments will be made for 10 years or more and you elect no withholding

STEP 4 Rollover Information (Select destination for your Direct Rollover)

Complete Section A for a Direct Rollover of your Non-Roth 401(k) amounts.

Complete Section B for a Direct Rollover of your Roth 401(k) accounts if applicable.

- A. **Non-Roth 401(k) amounts:** Select the type of account and fill in the name of the institution/trustee to which your Direct Rollover of non-Roth amounts will be made:

☒ Traditional IRA

☐ Roth IRA (Pre-tax amounts will be included in your taxable income; see Instructions)

☐ Employer Plan (Qualified Plan, 403(a) Qualified Annuity, 457 Plan, or 403(b) Tax-Sheltered Annuity)

Make Check Payable to (Fill in Name of Institution / Trustee):

LPL FINANCIAL, FBO KENNETH LIVINGSTON

NOTE: Pre-tax amounts in your account balance are included in your Direct Rollover before any after-tax amounts. "After-tax" means only the amount in your account which was taxed before it was contributed but does not include Roth amounts.

- B. **Roth 401(k) accounts:** Select the type of account and fill in the name of the institution/trustee to which your Direct Rollover of Roth amounts will be made:

☒ Roth IRA

☐ Employer Plan (Qualified Plan, 403(a) Qualified Annuity, 457 Plan, or 403(b) Tax-Sheltered Annuity)

Make Check Payable to (Fill in Name of Institution / Trustee):

TTAA, FBO KENNETH LIVINGSTON

- ☐ **Roth Disability:** Check here if (i) you checked Disability as the Reason for Distribution in Step 2 and (ii) you meet the following requirements of a Roth Permanent Disability – you are unable to engage in any substantial gainful activity by reason of any medically determinable physical or mental impairment which can be expected to result in your death or to be of long-continued and indefinite duration.

STEP 5 Participant Acknowledgement and Signature

I hereby authorize the distribution of funds from my account according to the directions identified above. I understand that there may be certain penalties, transaction fees and/or taxes due. By signing this form, I certify that within the last 180 days I have received a notice describing the tax consequences of my distribution options and the material features of the optional forms of payment available under the Plan. I am aware that I may have the right under the Plan to defer distribution if my account balance exceeds the Plan's cashout limit. I am aware that the Internal Revenue Service recommends that I take 30 days to consider my distribution options; however, by returning this signed form prior to the expiration of the 30-day period, I hereby waive the 30-day waiting period. Further, I certify that no portion of the benefits to which I am entitled from the Plan is subject to a qualified domestic relations order which would affect the payment of any benefits from the Plan. I understand that there may be penalties and/or taxes due depending upon my particular circumstances.

Signature of Employee/Participant

Date

4/13/2022

STEP 6 Return Form to Your Employer or This Form WILL NOT BE PROCESSED

Plan Administrator Approval/Signature: Arnell Maynard Date: 4/12/2022

Recordkeeping Plan #: 2.83651

Plan Administrator should fax completed and approved form to: 1-973-712-7489